

UPDATED Course Overview

2026-2027

1. COURSE NAME AND NUMBER

Introductory Lawyering Skills – LW 1301

2. COURSE INSTRUCTORS

Course Director: Professor Shelley Kierstead

email: skierstead@osgoode.yorku.ca;

Office location – Osgoode, Room 3018

Office Hours: **Unless otherwise noted on eClass**, office hours (either in person or via Zoom) will be held from 8:30 am to 10:30 on Mondays. A sign-up list will be provided each week on eClass. If these times do not work, please contact Professor Kierstead by email to find a mutually convenient time to meet. Students wishing to discuss the final grade will have the opportunity to set up a meeting via the eClass Scheduler.

Tutorial Instructors (TAs): (See eClass for more details)

Section A:

- Clare Shrybman
- Xiang Zhang

Section B:

- Maria Muskus-Toro
- Nancy Barkhordari

Section C:

- Shadi Nasser
- Ibrahim Carvalho

Section D:

- Olaolu Oni
- Ifeoma Nwafor

Section E:

- Madeline Davis
- Lesley Yang

Faculty Assistant: Jessica Best

email: legalprocess@osgoode.yorku.ca

Please note that recording a meeting with either Professor Kierstead, a tutorial instructor or the ILS faculty assistant without advance consent from that party is not permitted.

3. COURSE INFORMATION

a. General

In this course, you will learn fundamental skills that are critical to success in all your other courses and in legal practice. Introductory Lawyering Skills is a full year course taught using a blended learning format and a simulated law firm platform. Students are expected to participate in the online learning components of the course as well as the in-person lectures and tutorials. Professor Kierstead will be primarily responsible for lecture and online learning delivery. Tutorials and “law firm” activities will primarily be facilitated by Introductory Lawyering Skills Teaching Assistants [“TAs”]. Please see the Introductory Lawyering Skills course site (on eClass) for your allocated tutorial group and consult your section schedule for your tutorial time and location. It is important to be attentive to the course site since it is the location for many of the course learning activities and evaluation components. Note that there are six (6) potential learning settings for Introductory Lawyering Skills classes. They may occur in various combinations for any given week. Please check the course site for an indication of the learning settings for each week.

- In-Class Lecture (Students from all sections meet in the Moot Court rooms 1005/1006)
- Online Lecture (Instead of meeting in the Moot Court, all students are expected to complete the assigned asynchronous online learning activities)
- In-class Tutorial (Students attend a tutorial led by their TA)
- Asynchronous online tutorial (Instead of an in-class tutorial, all students are expected to complete the assigned asynchronous online tutorial activity)
- In exceptional circumstances, a lecture or tutorial may be held via Zoom
- Collaborative online and/or in-person work among simulated law firm members.

b. Class Times:

- Both fall and winter term lectures will be held on Fridays from 1:30 to 4 pm if there is no tutorial during the week, and from 1:30 to 3 pm if there is a separate tutorial. Please check the schedule below and on eClass. Lectures will be held in room 1005/1006 unless the detailed weekly schedule below indicates that the materials will be presented asynchronously.
- Tutorials – please check your Section Schedule (on myOsgoode) and note that tutorial times ARE NOT THE SAME for Fall and Winter terms.

c. Course Learning Objectives

By the end of this course, students should be able to:

- demonstrate an understanding of the role of *stare decisis* within a common law regime;
- analyze and brief cases, synthesize a principle or principles from multiple decisions, and identify analytical tools such as analogy and distinction;
- find, understand and use primary and secondary legal sources in problem-solving, persuasive analysis, and critical analysis contexts;
- demonstrate a working knowledge of ways that different perspectives can shape the law and legal processes;
- understand the need for lawyering skills (including both appropriate and inappropriate uses of Artificial Intelligence) that respond to access to justice challenges;
- recognize circumstances that give rise to ethical questions and issues of professionalism, and demonstrate an ability to assess appropriate responses to these issues;
- understand the importance of developing and maintaining trust in a lawyer-client relationship;
- conduct an introductory client interview and create client-centred correspondence;
- demonstrate the ability to work collaboratively within a professional legal setting;
- draft an “office” memorandum that employs thorough and relevant research, an accurate and objective articulation of facts, and organized, precise, and plausible legal predictions using plain language suited to the document’s purpose and audience;
- draft a client opinion letter that is attentive to accuracy and tone;
- engage effectively in introductory oral advocacy exercises;
- draft a factum that employs thorough and relevant research, an accurate yet persuasive articulation of facts, organized, precise, and persuasive legal arguments, and plain language suited to the document’s purpose and audience;
- draft a critical analysis of a case and/or legislative source that incorporates an appropriate application of legal analytical tools, and policy/legal theory considerations;
- demonstrate an understanding of basic human rights principles;
- work effectively and ethically with generative AI:
 - demonstrate a basic understanding of how AI functions, how it is (re)shaping legal practice, and ethical, professional and practical implications for its use; and
 - demonstrate the ability to critically evaluate and verify generative AI outputs by applying the legal research and analytical reasoning skills developed throughout the course.

d. Evaluation:

i. Fall term (42%):

- *Courts, Case Law and Statutes Basics eClass Quiz* – 6% – This quiz will be done individually via eClass. It will cover materials from weeks 1-3.
- *Predictive Analysis Assignment* – 5% – This assignment must be done in groups of 2-3 students from the same tutorial group.
- *Research/Citation Quiz* – 7% – This quiz will be done individually via eClass, and will focus on the materials from weeks 5 and 6.
- *Client Interview* – 3% – Interviews will be done with pairs of student interviewers from within their simulated law firm. Simulated clients will provide feedback to

students about their performance on the interview and will assess whether the student pair has demonstrated a good faith effort. If so, students will achieve a grade of 3. If not, students will be asked to re-do the interview.

- *Research Memorandum* assignment – 15% – This assignment will be completed individually and will be graded by either a TA or Professor Kierstead.
- *Tutorial Participation* – 6% – There are 7 tutorials during the fall term and one online 2.5-hour lecture that encompasses tutorial time. One mark (to a maximum of 6) is available for each tutorial/2.5-hour lecture. Attendance will be taken. You will not be considered present if you either arrive 10 minutes after the start of your tutorial or leave 10 or more minutes prior to the end of tutorial. There is no alternative to in-person attendance, and there are no “make up” opportunities. There is a presumption that attendance will be accompanied by participation, which will lead to a mark for each class. Your TA will, by the end of week 1, provide a written description on eClass of how you can obtain full participation marks.

ii. Winter term (58%):

- *Law Firm Contract and Client Opinion Letter* – 8% – This combined assignment will be completed by simulated law firm members as a group. It will be graded by a law firm supervisor (TA) or Professor Kierstead.
- *Factum* – 10% – This assignment will be completed by simulated law firm members as a group. It will be graded by either a law firm supervisor (TA) or Professor Kierstead.
- *Moot* – Pass/Redo – This assignment will be completed in pairs from within students’ simulated law firm. It will be assessed on a pass/redos basis and will be graded by either a TA or Professor Kierstead.
- *Law Firm Peer Assessment* – 2% – It will be done individually and graded by either a TA or Professor Kierstead.
- *Final Test* – 33%:
 - Part 1 (10%) – will be completed individually using the quiz functionality on eClass.
 - Part 2 (23%) will be completed individually in-class. This will be an open book test using only print materials. It will be graded by either a TA or Professor Kierstead.
- *Tutorial Participation* will form 5% of your overall course grade. There are 5 in person tutorials, one online 2.5-hour lecture that encompasses tutorial time, and 1 online tutorial during the winter term. One mark (to a maximum of 5) is available for each tutorial/2.5-hour lecture. Attendance will be taken. (In the case of the online tutorial, attendance will be confirmed on e-Class). For live (in-class or online) classes, you will not be considered present if you either arrive 10 minutes after the start of your tutorial or leave 10 or more minutes prior to the end of tutorial. There is no alternative to in-person attendance, and there are no “make up” opportunities. There is a presumption that attendance will be accompanied by participation, which will lead to a mark for each class. Your TA will, by

the end of week 1, provide a written description on eClass of how you can obtain full participation marks.

iii. Both terms

- Failure to complete any of the quizzes or assignments (this does not include tutorials) will lead to a failing mark in the course. Failure to achieve a grade of at least 65% on each graded assignment (this does not include tutorials or the final test) will also lead to a failing grade in the course. However, students who do not achieve a grade of at least 65% (prior to any lateness deduction) on any assignment (including quizzes and law firm group assignments) will have the opportunity to resubmit the assignment in order to achieve a 65% grade. If, on the resubmit, a student receives a grade higher than 65%, their recorded grade will be 65%. Any original lateness deduction will be applied to the resubmitted assignment. The goal is simply to ensure that the quality of the work has achieved a passing level.
- Where communication with other students and/or faculty is required for an assignment, failure to adopt a professional form of communication can lead to a grade deduction for the assignment.

iv. Evaluation at a Glance

Evaluation Component	Individual or Group?	Weight	Distribution Date	Due Date
Fall Term		42%		
Case Brief Exercises (eClass dropbox – sample answer revealed to student when assignment submitted)	Individual	0% - Optional	Friday, September 4 at 8:30 am	Throughout term
Courts, Caselaw and Statutes e-Class Quiz (The quiz will comprise 12 questions. You will have 15 minutes to complete each quiz after you have opened it)	Individual	6%	Friday, September 18 at 4:00 pm	Friday, September 25 at 8:30 am
Predictive Analysis Assignment	Pairs or groups of 3 only (All pairs/groups must be in the same Tutorial Group)	5%	Friday, October 2 by 4:00 pm	Friday, October 9 by 8:30 am
Research and Citation eClass Quiz (The quiz will comprise 14 questions. You will have 20 minutes to complete the quiz after you have opened it)	Individual	7%	Friday, October 9 by 4:00 pm	Friday, October 16 by 8:30 am
Client Interview	Pairs (Each pair must be in the same Tutorial Group)	3%	Scheduled time during week of October 19	Scheduled time during week of October 19
Research Memorandum Assignment	Individual	15%	Friday, October 23 by 4:00 pm	Monday, November 9 by 8:30 am
Participation:	Individual	6%	Tutorial materials as indicated on the weekly eClass block of materials	“

Winter Term		58%		
Law Firm (Team) Contract and Client Opinion Letter	Group comprising simulated law firm members	8%	Friday, January 15 at 4:00 pm	Friday, January 22 at 8:30 am
Factum – Applicant	Group comprising simulated law firm members	10% (Note that each “firm” will complete either an Applicant Factum OR a Respondent Factum – not both)	Friday, January 22 by 4:00 pm	Monday, February 1 by 8:30 am
Factum – Respondent	Group comprising simulated law firm members	10% (Note that each “firm” will complete either an Applicant Factum OR a Respondent Factum – not both)	Monday, February 1 by 4:00 pm	Friday, February 12 by 8:30 am
Moot	Pairs from within simulated law firm	Pass/Redo	Scheduled during week of Feb 22, March 1 or March 8	Scheduled during week of Feb 22, March 1 or March 8
Peer Assessment	Individual	2%	Assessment window will open March 12 at 4:00 pm.	Assessment window will close March 19 at 8:30 am
Final Test	Individual	33%	Part 1 (10 marks), Online – released March 19 at 4:00 pm Part 2 (23 marks), in class March 26 from 1:30 pm – 3:30 pm	Part 1 – window closes March 23 at 8:30 am Part 2 in class March 26 from 1:30 pm – 3:30 pm
Participation:	Individual	5%	Tutorial materials as indicated on the weekly eClass block of materials	“Tutorial Question” at either the beginning or end of each in-person tutorial. An associated Exercise will be posted for the one online tutorial.

v. Lateness, Participation and Absence Policies

- All written assignments and quizzes will be subject to a lateness penalty of 10% of the assignment value for each day or part day of lateness (including weekends and holidays). The calculation of time will begin from the time the assignment is due.

- All in-term accommodation requests relating to assignments, tutorials and final test must be submitted to Nicole Case (ncasey@osgoode.yorku.ca).

vi. AI Policy

The use of AI is prohibited in this course unless and to the extent that the Course Director permits it. More specifically - unless the use of AI is expressly required as part of an assignment, tutorial exercise or lecture preparation for this course, the only use permitted is for purposes of correction of grammar, idiom, punctuation, spelling and sentence mechanics (and nothing beyond – this is consistent with section 5.3a.x of the Senate Academic Conduct Policy and Procedures). The use of AI, and the extent of that use, must be disclosed in all written assignments.

e. Content:

i. Required Materials

- *Canadian Guide to Uniform Legal Citation*, 10th ed (Toronto: Thomson Carswell, 2023). http://ezproxy.library.yorku.ca/login?url=https://nextcanada.westlaw.com/Browse/Home/Canadi anGuidetoUniformLegalCitationMcGillGuide?sp=CRSW_Osgoode
 - Cost – this is available without charge on the Westlaw Canada site.
- McCarney, Moira, *et al*, *Comprehensive Guide to Legal Research, Writing and Analysis*, 4th ed (Toronto: Emond Montgomery, 2024) [*McCarney Text*].
 - Cost – Print – final sale cost - \$114.00
 - Some chapters have been updated quite significantly from the third edition, so care must be taken if the third edition is used.
- Supplementary materials posted to the e-Class course website.

ii. List of Topics and Assignment Due Dates – Fall Term

Week	Topic	Preparatory Readings/Viewing
Prior to Week 1 Week 1	Zero L	N/A
Fall Week 1 Week of Aug 31	Lecture: 1:30 pm to 4 pm (in person) Course Overview; Introduction to Human Rights Law; Canadian Legal System Review No tutorial. Distribution of Westlaw and Lexis Passwords; Intro to CanLII	McCarney text, Chapter 1, pages 14-21 and Chapter 10, pages 14-18 Human Rights Commission of Ontario, <i>Guide to your Rights and Responsibilities Under the Code</i> <i>Knauff v Human Rights Tribunal of Ontario</i> , 2025 ONSC 786. Case Brief Template (posted)

Fall Week 2 Sept 7	Tutorial: Case Briefing – Long and Short Form Lecture: 1:30-3 pm (Online) The Development of Competence Introduction to Analytical Skills – Statutory Interpretation	<u><i>AB v Toronto Catholic District School Board</i></u>, 2024 HRT0 739 and 2025 HRT0 743 <i>McGill Guide</i> <i>The AI Trap</i> (277-294) <u><i>Kapahi Real Estate Inc v Elite Real Estate Club of Toronto Inc</i></u>, 2026 ONSC 1438. McCarney Text, Chapter 4A, pages 3-7; Chapter 5, pages 3-5; Chapter 10, pages 4-14 Ruth Sullivan, “Statutory Interpretation in a New Nutshell” (2003) 82:1 Can Bar Rev 51.
Fall Week 3 Sept 14	Tutorial: Statutory Interpretation Exercise Courts, Caselaw and Statutes Basics Quiz will be posted by September 18 at 4:00 pm and due on September 25 by 8:30 am Lecture – 1:30 – 3 pm (In class) Analytical skills – problem solving; Material Facts and Issues; Analogy and Distinguishing	Review: McCarney Text, Chapter 4A, pages 3-7; Chapter 5, pages 3-5; Chapter 10, pages 4-14 Review: Ruth Sullivan, “Statutory Interpretation in a New Nutshell” (2003) 82:1 Can Bar Rev 51. <u><i>Wilk v Arbour</i></u>, 2017 ONCA 21. <u><i>Nigro v Luciano</i></u>, 2026 ONCA 283. McCarney Text, Chapter 2; Chapter 10, pages 2-28 Debra Parkes, “Precedent Revisited: <i>Carter v Canada (AG)</i> and the Contemporary Practice of Precedent” (2016) 10:1 McGill JL & Health 123.
Fall Week 4 Sept 21	Tutorial: Material Facts and Issues; Initial Issue Assessment Lecture – 1:30 – 3 pm – In Class	Additional Tutorial Materials (posted) McCarney Text, Chapter 12, pages 21-24; Chapter 3, pages 5-13

	Introduction to Written Predictions (CREAC)	
Fall Week 5 Sept 28	Tutorial: Analogy and Distinguishing; CREAC Predictive Analysis (group) assignment will be posted October 2 by 4 pm; due October 9 by 8:30 am. Lecture: 1:30 to 3 pm (ONLINE) Introduction to Research Planning How LLMs Work Introduction to Secondary Sources Introduction to Citation	Columbia Law School Writing Center, “Organizing a Legal Discussion: IRAC/CRAC/CREAC” University of Baltimore School of Law Legal Writing Centre, “Don’t Crack up Because of “CREAC”!” Additional Tutorial Materials (posted) McCarney Text, Chapter 7, pages 1-20 Background: How Large Language Models Actually Work CiteRight (posted materials)
Fall Week 6 Oct 5	Tutorial: Secondary Source, Legislative and Caselaw Citation Lecture 1:30 pm – 3 pm (online) Caselaw and Legislation Research Research and Caselaw Citation Quiz – Released October 9 by 4 pm; due October 16 by 8:30 am	Posted Tutorial Materials McCarney Text, Chapters 5, 6, 7 (skim), 9 <i>McGill Guide</i> Additional Tutorial Materials (posted)
Fall Week 7 Oct 12	No tutorials Lecture – 1:30 to 4 pm (Online) Client Interviewing	Excerpt from Krieger, Neuman & Laurent, <i>Essential Lawyering Skills</i>, Chapter 8 (posted) Interview Rubric (posted)
Fall Week 8 Oct 19	No tutorials, but complete client interview as scheduled Lecture – 1:30-3 pm (in class) Predictive Memorandum Writing – Substance and structure;	McCarney Text, Chapter 12 and Chapter 13 pages 1-10 Sample Memo (posted) Memorandum Framework (posted) <i>Moore v British Columbia (Education)</i>

	Discrimination claims under the Ontario <i>Human Rights Code</i> Research Memorandum assignment will be posted on October 23 by 4 pm and due by November 9 at 8:30 am	
Fall Week 9 Oct 26	Tutorial: Memorandum substance and structure applied Lecture (online) Development of Competence, Cont'd CREAC Adaptations and Enhancements; Plain Language in Legal Writing	Additional Materials (posted) The AI Trap pages 302-317; LSO White Paper (all) McCarney Text, Chapter 12 (pages 14-20)
Fall Week 10 Nov 2	READING WEEK	N/A
Fall Week 11 Nov 9	Tutorial: Memorandum style Lecture: 1:30 pm – 3 pm (online) Final Memorandum Consultations	Week 8 and 9 Materials Additional Tutorial Materials (posted)

iii. List of Winter Term Topics:

Winter Week 1 January 4	No tutorial Lecture: 1:30-4 pm (Online) Introduction to the Winter Term and SIMple; Introduction to Human Rights Remedies; Client Letters;	Readings/Preparation: • <i>Arunachalam v Best Buy Canada</i>, 2010 HRT0 1880. • <i>Piazza v Airport Taxicab (Malton) Association</i>, 1989 CanLII 4071 (ONCA). • Text, Chapter 12 at 10-13 • Posted Sample Opinion Letter •
---------------------------------------	---	--

Winter Week 2 January 11	Tutorial – Opinion Letter Construction Lecture: 1:30 pm – 3 pm (in class) – Law Firm (Team) Contract; Anticipating Client Use of AI Law (Team) Contract and Opinion Letter Assignment will be posted on January 15 by 4 pm and due by January 22 at 8:30 am	• Posted Tutorial Exercise • Law Firm (Team) Contract Template • Additional Reading (posted)
Winter Week 3 January 18	Tutorial: Opinion Letter Consultations Lecture: 1:30-3 pm (in person) HRT0 Pleadings The move to persuasive writing	• Bring draft opinion letter materials • Human Rights Tribunal of Ontario: Forms and Filing • Posted Samples – Human Rights Claim Application; Human Rights Claim Response; Human Rights Claim Reply • John J Bursch, “Transmitting Ideas: Storytelling in Brief Writing” • Justice John Laskin, “Forget the Windup and Make the Pitch” • Additional posted readings (TBA)
Winter Week 4 January 25	Lecture: ASYNCHRONOUS (RECORDED) All Sections: Rhetoric and Persuasion Counsel for Applicant: (groups A1, A2, B1, B2, C1, C2, D1, D2, E1,E2): Formatting Applicant Factums Tutorial: Factum Format - IN CLASS for Counsel for Applicant (groups A1, A2, B1, B2, C1, C2, D1, D2, E1, E2) ONLY.	• Posted excerpt from Michael R Smith, <i>Advanced Legal Writing: Theories and Strategies in Persuasive Writing</i>, 3d ed (New York: Wolters Kluwer Law & Business, 2013) • Posted tutorial Exercise for Counsel <u>for Applicant</u> (groups A1, A2, B1, B2, C1, C2, D1, D2, E1, E2):

	NO TUTORIAL FOR “3,4” groups	
Winter Week 5 February 1	Lecture: ASYNCHRONOUS (RECORDED) All Students: Link between written and oral advocacy Counsel for Respondent: (groups A3, A4, B3, B4, C3, C4, D3, D4, E3, E4): Formatting Respondent Factums Tutorial: IN CLASS FOR counsel for Respondent (groups A3, A4, B3, B4, C3, C4, D3, D4, E3, E4) ONLY. NO TUTORIAL FOR “1,2” groups	• All students: Lawrence D Rosenberg, “Aristotle’s Methods for Outstanding Oral Arguments” • Additional posted readings • Posted tutorial exercise for Counsel <u>for Respondent</u> (A3, A4, B3, B4, C3, C4, D3, D4, E3, E4)
Winter Week 6 February 8	Lecture: IN-CLASS - Link between Written and Oral Advocacy; Oral argument structure Tutorial: IN-CLASS - Oral Argument	Lecture: • Posted readings (Oral argument structure) • Posted Tutorial Exercise
Winter Week 7 February 15	READING WEEK	
For Weeks 8-10 → Feb 22 March 1	During these weeks, there are three learning activities scheduled:	Materials are as follows: <u>Scheduled Moot:</u> • Assigned Moot Materials

March 8	<u>SCHEDULED MOOT</u> (2 teams of 2 students per moot) – (Weeks 8, 9 and 10) You will be scheduled either during your regular tutorial time (Weeks 8, 9, 10), during Monday lecture time (Weeks 8, 9, 10); or another scheduled time (Weeks 8, 9, 10). ○ <u>Topic</u>: See Moot Assignment documents ○ <u>Location</u>: Zoom ○ <u>Preparation</u>: Work with Moot Assignment documents to create your oral argument(s) <u>ONLINE ASYNCHRONOUS LECTURE</u> – will be available at the beginning of Week 8 (February 22) • You can listen to it during either week 8 or week 9. ○ <u>Topic</u> – Introduction to Critical Analysis in Writing ○ <u>Location</u> – Online ○ <u>Preparation</u> – Read weeks 8, 9 posted materials <u>ONLINE TUTORIAL</u> – will be available at the beginning of Week 9 • You can complete the online tutorial during either week 9 or week 10 (but please	<u>Online Lecture</u>: • Text, Chapter 10, pages 23-29 • Additional posted readings <u>Online Tutorial</u>: • Text, Chapter 13, pages 16-19 • Additional posted reading • Posted Tutorial Exercise (to be completed and submitted as proof of participation)
---------	---	---

	complete it after you have listened to the online lecture). ○ <u>Topic</u> – Critical Case Comments ○ <u>Location</u> – Online ○ <u>Preparation</u> – Prepare weeks 9/10 tutorial materials	
Winter Week 11 March 15	Tutorial – IN CLASS: Critical Case/Legislative Comments Lecture – 1:30 pm – 3 pm – Final Test Preparation	• Posted Tutorial Exercise • Case/Legislative Comment Framework
FINAL TEST DETAILS	Final Test: Part 1 – eClass Quiz (10 marks) – you will have 30 minutes to complete the quiz (20 questions). It will open on March 19 at 4:00 pm and will close on March 23 at 8:30 am.	Final Test: Part 2 – (23 marks) In Class with ExamSoft - March 26 from 1:30 pm – 3:30 pm

4. OSGOODE AND YORK ACADEMIC POLICIES

This section is required by Osgoode Hall Law School to be in every course outline. Students are expected to have read the whole section.

a. Academic Honesty and Integrity:

Osgoode students are required to maintain high standards of academic integrity and are subject to the **York Senate Academic Conduct Policy and Procedures** and the relevant [Osgoode Academic Rules](#). Further information is available on the [York Academic Integrity](#) site.

The Senate Policy and Osgoode Academic Rules are also available via the *JD Students* part of the MyOsgoode website, proceeding through the “Student Handbooks” button, then “JD Academic Handbook”, and finally the “Academic Rules” link.

Special attention is drawn to the following three matters related to reliance on external persons, works, and/or technologies:

1) *Unauthorized use of collaborative study materials*

The provisions of the York Senate Policy on Academic Honesty on unauthorized collaboration have been supplemented by Osgoode's "[*Guidelines on use of Collaborative Study Materials in Examinations*](#)", found [HERE](#). Students are strongly advised to read the Guidelines closely; knowledge of them will be assumed. Note a key bottom-line is that use of collaborative study materials in the ways and contexts set out in the Guidelines is prohibited unless explicitly permitted by the instructor and then, only to the extent of that authorization.

2) *Assistance from content-generating artificial intelligence (GenAI) and/or AI prohibited by the instructor*

The Academic Conduct Policy and Procedures contain rules on use of GenAI and AI more generally. Some key provisions are reproduced below to ensure no student is unaware of them:

Section 5.2.a.i., ii. & x:

Cheating – the attempt to gain an unfair advantage in an academic evaluation.
Forms of cheating include but are not limited to:

- i. Using an undocumented or unreferenced content generator, including the use of text-, image-, code-, or video-generating artificial intelligence (AI);
- ii. Obtaining assistance by means of documentary, artificial intelligence technology, electronic or other aids that are restricted by the instructor (see Section 6.2.c);
- ...
- x. Submitting work prepared in collaboration with a third party when collaborative work on an assessment has not been authorized by the instructor/supervisor, and goes beyond correction of grammar, idiom, punctuation, spelling and sentence mechanics;

For the sake of caution "third party" in section 5.2.a.x. should be read to include use of tools like Word's spelling and grammar feature, Grammarly, and so on. Such tools are fine to use but they cannot "go beyond correction" any more than a human third party's assistance could. Because this provision is structured as prohibited-unless-authorized, students may not use such tools to essentially re-write drafts (if and when some tools develop such capacities) unless the instructor has enunciated a general course policy allowing such use.

Section 4:

Undocumented/Unreferenced: refers to undocumented and/or unreferenced quotes, passages, sources, and other missing or improper citation of work submitted for evaluation.

Section 6.2. & 3:

It is the responsibility of **students** to:

...

c. follow their instructors' expectations for using text-, image-, code-, or video-generating artificial intelligence (AI); referencing sources; group work and collaboration, and be proactive in pursuit of clarification and resources to support these expectations;

...

It is the responsibility of **course directors and graduate supervisors** to:

b. communicate with and support students in following instructors' expectations for *using text-, image-, code-, or video-generating AI*; referencing sources; conducting group work and collaboration;

3) Plagiarism, unattributed paraphrasing and connections to improper use of AI

The York Senate Academic Conduct Policy and Procedures prohibit plagiarism in section 5.2.b.:

Plagiarism – the appropriation of the work of another whether published, unpublished or posted electronically, attributed or anonymous, without proper acknowledgement. This includes but is not limited to:

- i. Presenting all or part of another person's work or ideas as something one has produced where work includes, but is not restricted to, text, code, technical and creative production, paragraph and essay structure and organization, and other forms that constitute intellectual property;
- ii. Paraphrasing another's writing without proper citation;
- iii. Representing another's artistic, technical work or creation as one's own;
- iv. Reproducing without citation the student's own work originally presented elsewhere; and
- v. Failing to attribute sources, or failure to attribute sources properly.

Apart from section 5.2.b.i.'s relevance to use of AI (in terms of how AI can lead to "presenting ...another person's work or ideas as something one has produced"), students are especially urged to understand that paraphrasing without proper citation is plagiarism. There has always been a concern that some students do not sufficiently understand the need to cite to sources of paraphrases no less than directly quoted work. This problem may be growing. Of late, this is manifesting itself in students using extensive paraphrases, sometimes that go on for pages, but only citing to the source at or near the start or at or near the end – and sometimes sprinkling in a reference or two in between.

Apart from such extensive paraphrasing not being exemplary work, the moment a reader cannot know whether a given idea or thought is connected to a citation (because the citation is so distant from it) is the moment such paraphrasing also constitutes the academic offence of plagiarism for failure to properly attribute. Students are urged to take great care here, especially since there are reasons to worry that even instructor-authorized use of an AI tool can lead students to start

producing substantial paraphrases of AI-generated text. Again, however poor such use of AI would be, it also comes with the risk of plagiarism if the student has not properly referenced the AI tool and any question(s) used to prompt the AI tool's answers, and/or has not documented by retaining the text of both the questions (and follow-up prompts) and the answers given by AI. Thus, section 5.2.a.i. cheating by use of unreferenced and/or undocumented AI content generation can intersect with section 5.2.b. plagiarism.

b. Religious Observance:

York University is committed to respecting the religious beliefs and practices of all members of the community, and making accommodations for observances of special significance to adherents. Should any of the dates relating to examinations or assignments for this course pose such a conflict for you, please let Assistant Dean, Students, Mya Rimón know within the first three weeks of class.

c. Students with Disabilities and Accommodation Needs:

York University has a range of resources to assist students with physical, mental, and learning disabilities/challenges in achieving their educational objectives. Students with disabilities requiring accommodation in the classroom or in the examination or evaluation process are encouraged to identify themselves to [York's Student Accessibility Services](#) office or Osgoode's Office of Admissions & Student Services as soon as possible.

Students seeking accommodation in experiential education settings are encouraged to read the "Accommodation Information for Clinical & Intensive Program" handout provided to them with their enrolment offer. All requests for accommodation will be kept confidential.

Requests for accommodation for in-term work must be made, in writing, to either the instructor or to the Academic Accommodations Coordinator, Nicole Casey. Such requests must be made as soon as the need for accommodation arises and, barring exceptional circumstances, in advance of the deadline for the work.

Requests for accommodation for final examinations and final papers may only be made to and approved by the Assistant Dean, Students, Mya Rimón and must be made in advance of the examination date or final paper due date.

d. Other York University Policies, including Ethics Review Process:

Further information concerning relevant York University academic policies, such as the Ethics Review Process for research involving human participants is available online via the [University Secretariat](#).

5. POLICIES REGARDING STREAMING AND RECORDING FOR IN-PERSON, REMOTE, AND HYFLEX (DUAL-DELIVERY) TEACHING AND LEARNING

a. Remote and Hyflex classes:

In 2026-27, a handful of courses are being delivered fully remotely (i.e., using Zoom), partly remotely (blending in-person classes for the majority of the class with less frequent online

classes or modules) or by Hyflex (dual-delivery). The Hyflex mode of delivery involves some students joining class in real-time from an online connection while the rest of the students are in-person in the physical classroom with the instructor.

Note, however, that instructors of all in-person courses have the discretion for pedagogical reasons to run some classes in a way that has students attending online, whether everyone is online including the instructor (fully remote on Zoom) or whether some are online with the instructor in the physical classroom with other students (Hyflex). The number of such classes is limited by Osgoode's definition of an in-person course as being a course that is predominantly and essentially in person.

b. Modes of Delivery, Streaming, and Recording:

With respect to lecture classes in "courses" (as opposed to "seminars"), class sessions must be recorded – whatever mode in which they are being taught – in order to be in compliance with Osgoode's recording policy for lecture courses. For regular in-person lecture sessions, that means recording from the computer console at the front of the class of both the instructor's voice and the screen display using a platform called Panopto. If a given lecture class session is done in a synchronous remote mode (Zoom) or a Hyflex mode, it too must be recorded under Osgoode's recording policy.

Then, for any of these modes, it is left to the pedagogical judgment of the instructor as to whether the recording will be posted on eClass for all students in the course to access. Where an instructor decides not to make the recording of their lecture class available to all students in the class (as they are permitted to decide), the recording must nonetheless be made available to any student who has an accommodation that requires access to the recording.

As for seminars, there is no duty to record seminar sessions under Osgoode's policy but an instructor may record a class session (or indeed the whole course) if they wish. If they decide to, it is further in their discretion as to whether to post the recording to the eClass site. As well, the above-mentioned discretion to have some classes that are not fully in-person – e.g., that are fully remote on Zoom or optionally remote for students via Hyflex – also comes with a discretion (but no duty) to record and upload.

c. Consent and Protections:

Whether in lecture classes of a course or in a seminar, activities for any class delivered synchronously online and any class delivered by Hyflex's dual-delivery method involve live streaming. They may also, and usually do, involve recording. They may further involve storing the recording online in order to make the recording available to the class, after the class has ended, on the eClass platform.

Images, audio, text/chat messaging that have been recorded may be used and/or made available by the University to students enrolled in the course and those supporting the course for the purpose of materials review, for assessment, etc. Recordings will be managed according to the University's Common Record Schedule and will be securely destroyed when no longer needed by the University. Your personal information is protected in accordance with York's [Policy on Access of Information and Protection of Privacy](#) and the [Freedom of Information and Protection of Privacy Act](#).

The University will use reasonable means to protect the security and confidentiality of the recorded information, but cannot provide a guarantee of such due to factors beyond the University's control, such as recordings being forwarded, copied, intercepted, circulated, disclosed, or stored without the University's knowledge or permission, or the introduction of malware into a computer system which could potentially damage or disrupt the computer, networks, and security settings. The University is not responsible for connectivity/technical difficulties or loss of data associated with your hardware, software, or Internet connection.

By engaging in course activities that involve recording, you are consenting to the use of your appearance, image, text/chat messaging, and voice and/or likeness in the manner and under the conditions specified herein.

In the case of a live stream recording during a remote class, if you choose not to have your image or audio recorded, you may disable the audio and video functionality. In the case of a live stream recording in a Hyflex (dual-delivery) class in which some students are in-person with the instructor and some students remote online, if you choose not to have your image or audio recorded, you may opt to attend the Hyflex class from the remote end, at which point you can disable the audio and video functionality.

In each such choice situation, the power to choose should be exercised against a background understanding that disabled audio and video can seriously affect the interactive dynamics of a class environment and the collective benefits of such interaction. Accordingly, if an instructor requests students not to turn off their cameras, students should not understand this as an order but as a considered preference based on serious reflection on pedagogy. You may still exercise your choice but are requested not to do so if turning off video or audio is more a matter of convenience than of principled objection to being seen or heard in a class.

d. Duties:

You are not permitted to disclose the link to/URL of an event or an event session recording to anyone, for any reason. Recordings are available only to authorized individuals who have been directly provided the above instructions/link for their use. Recordings for personal use, required to facilitate your learning and preparation of personal course/lecture notes, should not be made without the permission of the instructor or event coordinator and, further, should not be shared with others without the further permission of the instructor or event coordinator.

Additionally, it is prohibited to audio or video-record or otherwise capture what happens either in the physical or virtual classroom or in instructors' (this includes TAs) offices. If for some reason you wish to do so, permission must be sought in advance from the instructor(s).